

Amendment No. 1 to SB0437

Bailey

Signature of Sponsor

**AMEND Senate Bill No. 437\***

**House Bill No. 654**

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 56, Chapter 7, Part 26, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Health benefit plan" means a plan of health insurance coverage as that term is defined in § 56-7-109;

(2) "Mental health or substance abuse services" means care or services for the treatment of a mental health condition or substance use disorder that falls under a diagnostic category listed in the most recent version of the *Diagnostic and Statistical Manual of Mental Disorders*; and

(3) "Psychiatric collaborative care model" or "PCCM" means an evidence-based, integrated behavioral healthcare model of treatment that:

(A) Is provided by a primary care provider and a care manager who work in collaboration with a psychiatric consultant, such as a psychiatrist;

(B) Is overseen by the primary care provider and care manager and includes structured care management with regular assessments of a patient's clinical status using validated tools and modification of treatment as appropriate; and

(C) Requires the psychiatric consultant to provide regular consultations to the primary care provider and care manager to review the clinical status and care of a patient and make appropriate recommendations.

(b)

(1) Except as provided in subdivisions (b)(2) and (3), a health benefit plan that is offered, delivered, or issued for delivery on or after January 1, 2026, and that provides mental health and substance abuse services must provide for coverage and reimbursement of such services through a PCCM.

(2) A health benefit plan may deny coverage and reimbursement of services mandated under subdivision (b)(1) on the grounds of medical necessity.

(3) A policy or contract for health insurance coverage provided under the TennCare medical assistance program, or a successor program established under title 71, chapter 5, or the CoverKids program, or a successor program established under title 71, chapter 3, may provide coverage pursuant to this section when determined to be medically necessary pursuant to § 71-5-144.

SECTION 2. This act takes effect January 1, 2026, the public welfare requiring it.